

SENATE No. 177

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to starter home school cost reimbursement.

PETITION OF:

NAME:

Paul R. Feeney

DISTRICT/ADDRESS:

Bristol and Norfolk

SENATE No. 177

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 177) of Paul R. Feeney for legislation relative to starter home school cost reimbursement. Community Development and Small Businesses.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 132 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to starter home school cost reimbursement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 40S of the General Laws, as appearing in section 186 of chapter 7 of the acts of
2 2023, is hereby amended in section 1 by striking out the definitions of “New smart growth
3 development” and “Smart growth zoning district” and inserting in place thereof the following:-

4 "New smart growth development", any new residential or commercial development,
5 including the substantial redevelopment of existing buildings, subject to the payment of local
6 property taxes that: (a) occurs in a smart growth or starter home zoning district after the
7 adoption of such zoning by the community, and (b) is permitted under the provisions of the smart
8 growth or starter home zoning district. A redevelopment shall be considered substantial if its cost
9 exceeds 50 per cent of the building's pre-renovation assessed value or if it constitutes a change in
10 use from nonresidential to residential. "Smart growth zoning district", a zoning district adopted

11 by a community and approved by the department which is eligible, and which remains eligible
12 for density bonus payments under chapter 40R including without limitation smart growth zoning
13 districts as defined in section 1 of chapter 40R and starter home zoning districts as defined in
14 section 1 of said chapter 40Y.